



Commonwealth of Massachusetts
Executive Office of Health and Human Services
Office of Medicaid
www.mass.gov/masshealth

MassHealth
Rehabilitation Center Bulletin 16
April 2023

TO: Therapy Providers at Rehabilitation Centers Participating in MassHealth

FROM: Mike Levine, Assistant Secretary for MassHealth [signature of Mike Levine]

RE: COVID-19 Flexibilities after the End of the Federal Public Health Emergency

Background

On January 31, 2020, the United States Secretary of Health and Human Services (Secretary) determined that a nationwide public health emergency had existed since January 27, 2020. The Secretary renewed the Federal Public Health Emergency (FPHE) on April 21, 2020, July 23, 2020, October 2, 2020, January 7, 2021, April 15, 2021, and July 19, 2021. On January 30, 2023, the Secretary announced that the FPHE will end on May 11, 2023.

Due to the decision by the Secretary to end the FPHE, MassHealth is issuing this bulletin, effective May 12, 2023. It will replace all prior FPHE-related bulletins, specifically Rehabilitation Center (RHC) Bulletins 13 and 14.

Introduction

This bulletin communicates provider requirements that were suspended during the FPHE and that will be enforced after the FPHE. This bulletin also communicates changes in requirements implemented during the FPHE that will continue past the end of the FPHE and provides an update to telehealth policies for RHC providers of therapy services.

This bulletin applies to members receiving therapist services on a fee-for-service basis, including members enrolled in the Primary Care Clinician (PCC) Plan who are receiving MassHealth-covered therapist services.

Flexibilities Ending May 11, 2023

Prior Authorization Extensions

Through May 11, 2023, RHC providers may request to continue an existing prior authorization (PA). The provider must email the extension request to support@masshealthtss.com before the end date of the existing PA. These extension requests must have the following note in the comments field: "COVID-19." MassHealth will approve an extension for up to 90 days.

Beginning May 12, 2023, MassHealth will end the flexibility that allows rehabilitation centers to extend PAs through a written request to MassHealth. MassHealth will resume applying the provisions of 130 CMR 430.601(D). This regulation requires PA from MassHealth as a condition for payment for visits over the PA threshold.

Flexibilities Continuing on May 12, 2023

Therapy Telehealth Guidance

After the FPHE ends, consistent with the federal Consolidated Appropriations Act of 2023, MassHealth will continue to cover therapy appropriately provided by telehealth services until December 31, 2024, or when specified by MassHealth via regulation or Congress. See Consolidated Appropriations Act, 2023, H.R.2617, Sec. 4113, 117th Cong. (2022). Please see below for additional telehealth guidance for RHC services.

Therapy Telehealth Services

Prior Authorization and Recordkeeping

Therapy providers of telehealth services must follow all PA and recordkeeping requirements under 130 CMR 430.601(D) and 130 CMR 450.000. Services must meet all requirements under the MassHealth Guidelines for Medical Necessity Determination for Speech and Language Therapy, Physical Therapy, and Occupational Therapy.

Service Delivery Requirements

MassHealth is not imposing specific requirements for technologies used to deliver services via telehealth and will allow reimbursement for MassHealth therapist services delivered through telehealth, as long as such services

- are medically necessary;
- are clinically appropriate;
- meet requirements within 130 CMR 430.000 and 130 CMR 450.000; and
- meet all additional requirements of the therapy telehealth guidance in this bulletin.

Providers are encouraged to use appropriate technologies to communicate with individuals and should, to the extent possible, ensure the same rights to confidentiality and security as provided in face-to-face services. Providers must inform members of any relevant privacy considerations.

Therapy telehealth visits may be used for therapist services that

- require the member's consent, documented as described below; and
- are follow-up visits that do not require any hands-on care.

Follow-up visits do not include evaluations or re-evaluations and may be conducted by telephone if appropriate, but live video is preferred.

Live video telehealth must be used, with the member's consent, to conduct the comprehensive evaluation or reevaluation under 130 CMR 430.601(A)(9) for members receiving therapy.

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Telephone-only telehealth is not permitted to conduct the comprehensive evaluation or reevaluation under 130 CMR 430.601(A)(9).

Member Consent

Providers must get verbal consent from a member, and the member's caregiver or legal guardian if applicable, before starting telehealth and must document the consent in the member's record.

When requesting the member's consent, MassHealth therapy providers must provide the member with a statement explaining

- what a telehealth visit entails;
- what is expected from the member and the therapy provider;
- any relevant privacy considerations; and
- that the member may take back their consent for telehealth services at any time.

Information provided to members should be given in their preferred method of delivery and must be documented within the member's record.

Billing Instructions and Payment Rates for Therapist Services Delivered via Telehealth

Rehabilitation Center providers must include modifier "GT" when submitting claims for services delivered via telehealth. Rates of payment for therapist services delivered via telehealth will be the same as rates of payment for therapist services delivered via traditional (e.g., in-person) methods set forth in 101 CMR 339.00: *Rates for Restorative Services*.

Failure to include modifier "GT" when submitting claims for Rehabilitation Center services delivered via telehealth may result in the imposition of sanctions pursuant to 130 CMR 450.238-450.240.

Important note: Although MassHealth allows reimbursement for delivering certain services through telehealth, MassHealth does not require providers to deliver services via telehealth.

Documentation of Telehealth Services and Encounter Requirements

All documentation requirements of 130 CMR 450.000 and 130 CMR 430.000 apply when services are delivered via telehealth. The documentation must also include in the visit note

- that the service was provided via telehealth; and
- the rationale for service via telehealth.

Failure to maintain documentation requirements for services delivered via telehealth may result in the sanctions pursuant to 130 CMR 450.238–240.

MassHealth Website

This bulletin is on the MassHealth Provider Bulletins web page.

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[Sign up to receive email alerts when MassHealth issues new bulletins and transmittal letters.](#)

Questions

If you have questions about the information in this bulletin, please contact the Long Term Services and Supports (LTSS) Provider Service Center.

Phone: Toll free (844) 368-5184
Email: support@masshealthltss.com
Portal: www.MassHealthLTSS.com
Mail: MassHealth LTSS
PO Box 159108
Boston, MA 02215
Fax: (888) 832-3006



Kanagala-591225

Belgaum Dist. Karnataka State

HLL/BGM/HR/NURSE/2020-2021

Date: 26.02.2021

TENDER NOTIFICATION

Sealed Tenders are invited from reputed Hospitals/recruiting agencies/individuals for providing the services of **Qualified Female Nurse (One No)** on contract basis to assist the attending Doctor of the Company & for attending the medical needs of our employees and to manage the medical services in our Factory at Kanagla-591225, Tq: Hukkeri, Dist: Belgaum having about 400 no. of employees (Permanent & Casual) with OPD & well equipped First Aid Room with Ambulance. The Contract will be for a period of 01 years & extendable upto another depending on management decision as detailed below:

1. Qualification: ANM/Midwifery/GNM/Diploma in Gen.Nursing/B.Se Nursing

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- ~~2. Age: Not more than 35 Years as on 01.02.2021. However, the candidate have more experience age relaxation will be considered.~~
- ~~3. Working Hours: Normally 8 Hrs per day. However, during exigency it may be varied.~~
- ~~4. Nature of work:
 - ~~a) Assisting the Doctor at our First Aid Room.~~
 - ~~b) Maintenance of Health records of our all employees.~~
 - ~~c) Assisting the Doctor for analyzing Annual/Periodical medical checkup reports for feedback to the Management.~~
 - ~~d) Assisting the Doctor for follow up with the employees for management of Diabetics, Heart Diseases & other serious ailments.~~
 - ~~e) Assist the outside Medical team during Medical checkup of our employees.~~
 - ~~f) Improvement in home hygienic factors.~~
 - ~~g) To Assist the Doctor for comply of legal & statutory requirements.~~
 - ~~h) To assist the Doctor in maintaining the statutory & Mandatory Records/Conduct Statutory Medical checkups as per Factories Act/various ISO certification bodies from time to time.~~
 - ~~i) To Assist the Doctor for Audit facing and compliance to various Audits.~~
 - ~~j) Attending/assisting in any other medical related work that may arise from time to time and not included in the above list.~~~~
- ~~5. Charges: Should be quoted on monthly lump sum basis & should be inclusive of all statutory deductions & taxes as applicable & valid for 2 years period.~~
- ~~6. General Terms & Conditions: **Annexure – A** enclosed herewith.~~

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~~Interested parties/individuals/agencies may submit the offer mentioning the expected monthly lumpsum remuneration along with copies of Qualification & experience certificates in a sealed cover super scribing as “Quotation for Female Nurse Services on Contract” so as to reach the under signed on or before **12.03.2021** by **05.00 PM**.~~

~~The Management reserves the right to accept or reject any tender without assigning any reason and also to negotiate with the lowest quoted party. The Management reserves the right to cancel the tender at any stage without assigning any reason and the same will be binding on all the parties.~~

~~Tender details are also available on our website, www.lifecarehll.com~~

SENIOR MANAGER (HR)

To:

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~~Notice Board: Main Gate~~

~~Hospitals/Agencies/parties as per list enclosed.~~

~~Annexure – A~~

~~General Terms & Conditions~~

1. ~~Nurse~~ means nurses registered in Karnataka or Maharashtra Nursing Council.
2. ~~Workers engaged by you for aforesaid~~ work shall be Contractors employee only and not of HLL, Kanagala
3. ~~Section 101 (Exemption of Occupier or Manager from liability) of Chapter X under the Factories Act 1948 (All LXIII f 1948) (23rd Sept. 1948) is applicable.~~
4. ~~The above Tender / Subsequent Work order is liable to be suspended or cancelled at any time at the discretion of the General Manager (Operations) & Unit Chief, HLL Life Care Ltd, Kanagala-591225 with or without assigning any reason and his decision will be final and binding on all concerned parties.~~
5. ~~Work is to be carried out strictly as per the schedule and any change in the mode of work if desired by us is to be implemented and the Bidders shall supervise the work.~~
6. ~~Workers engaged by you for aforesaid contract shall be Servicers employee only and not of HLL Lifecare Ltd, Kanagala.~~
7. ~~There will not be any Employee Employer relationship between HLL Lifecare Ltd and the persons employed by servicer for aforesaid work.~~
8. ~~HLL Lifecare Ltd will not be liable for any accident happened to Servicers' staff while on work during the contract period. The Servicer has to buy **Personal Accident** insurance policy in respect of the Employees deployed by him as per the Payment of Workmen compensation Act, if applicable.~~
9. ~~The Bidders and his staff will not have any lien or right of employment as regular employees of HLL Lifecare Ltd.~~
10. ~~In case of any damages caused to our property by contractor / his men while executing the job, the cost of the same shall be recovered from the servicer.~~
11. ~~Company reserves the right to incorporate any left out clause subsequently that will be binding on the servicer.~~
12. ~~The servicer should follow the suggestion / instruction given by HLL Lifecare Ltd Representative time to time for the same.~~
13. ~~Sub contract / out sourcing is not allowed.~~
14. ~~The tender should be complete in all respects. Incomplete tenders are liable to be rejected.~~
15. ~~Unsealed Tenders are liable to be rejected and this will be at the sole risk of the tenderer.~~
16. ~~While quoting the rate in the Price Bid the Bidder should study well the nature of works given in schedule and calculate the work involved in the rate of each Medical Tests.~~

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- ~~17. Tenderers should study well the works involved and statutory and other liabilities before submitting the offer to undertake the work. In case the bidders other than the L-1 party are ready to match the L-1 rates, the work will be distributed to them also in addition to L-1 party at the matched rate of L-1 party and at the same terms and conditions and this will be binding on the L-1 party. However preference will be given to the L-1 party.~~
- ~~18. In case more than one tenderer quote the same rate in the price bid, the decision of HLL Lifecare Ltd will be final and binding on all the bidders.~~
- ~~19. HLL Lifecare Ltd has the right to give work under this tender to one party or more than one party, in full quantity or partially at the discretion of the company.~~
- ~~20. This Tender or subsequent work order is liable to be suspended or cancelled at any time at the discretion of the Management with or without assigning any reason and the same will be binding on all the bidders/Contractor. Also Technical and price Bid can be rejected or cancelled at any time by the Management with or without assigning any reason and the same shall be binding on all the bidders/Contractors.~~
- ~~21. The Management (HLL Lifecare Ltd) also reserves the right to allot the work to the L-2 or L-3 parties at the L-1 rates respectively if required.~~
- ~~22. Bidders should comply with the Safety and Quality policy of the Company.~~
- ~~23. Bidders has to ensure that all safety equipments like safety goggles, safety shoes, and hand gloves are to be provided wherever required to his workers deployed for the said work.~~
- ~~24. On award of contract, the contract can be **terminated** by HLL Lifecare Ltd **at any time** during the contract period without any reason and without paying any Compensation & the decision of the HLL Lifecare Ltd with regard to termination of Contractual provision will be final and the matter cannot be referred to the Court.~~
- ~~25. All statutory deductions will be applicable.~~

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~~26. Penalty clause will be made applicable for non-compliance.~~

~~27. Any left out clause will be included subsequently.~~